

Amendment No. 1 to HJR0098

Crawford
Signature of Sponsor

AMEND

House Joint Resolution No. 98*

by deleting all language after the caption and substituting:

WHEREAS, many servicemembers have reportedly been unlawfully forced to accept COVID-19 drugs and anthrax vaccinations; and

WHEREAS, our government has a history of subjecting our servicemembers to experimental conditions and substances without their consent; and

WHEREAS, our national security and readiness to necessarily conduct war is adversely impacted by the unlawful administering of drugs and substances or exposures to experimental conditions. Many injuries are reported to have occurred in our servicemembers from a forced requirement to accept COVID-19 "vaccinations"; and

WHEREAS, our civilian and military leaders owe both an allegiance to the welfare of the warfighter and a responsibility to the Republic to ensure rules, regulations, and laws are followed closely in the administering of health care to our servicemembers; and

WHEREAS, the PACT Act of 2022 expanded the Department of Veterans Affairs coverage of health care and benefits for veterans to include those exposed to burn pits, Agent Orange, and other toxic substances; and

WHEREAS, recognizing a potential for generational damage, this law helps us provide generations of veterans—and their survivors—with the care and benefits they've earned and deserve. It has been appropriate to recognize other chemical substances of which the unnecessary and forced exposure has caused damage to our servicemembers and their families; and

WHEREAS, the Department of Veterans Affairs has historically been slow to respond to toxic exposures, often leaving the servicemember or veteran exposed with no recourse nor help for decades; it is incumbent upon our government to care for the wounded and injured warriors; and

WHEREAS, a group of whistleblowers has asserted that COVID-19 treatments were issued while the chemicals were only Emergency Use Authorized (EUA). The servicemen and servicewomen alleged that the U.S. Department of Defense (DOD) has unlawfully administered EUA products as if they were fully licensed Food and Drug Administration (FDA)-approved products. Military regulations state service members have a legal right to refuse EUA products; and

WHEREAS, these whistleblowers contend that the FDA issued approval for Pfizer's Comirnaty vaccine in August 2021, but that none of the FDA-approved vaccines were available. FDA documents dated November 2021 state: "In the U.S., there are no licensed vaccines or antiviral drugs for the prevention of COVID-19." Furthermore, the FDA said the EUA-authorized Pfizer vaccines were "legally distinct" from the FDA-approved Comirnaty vaccines that were unavailable for service members in the U.S.; and

WHEREAS, anthrax vaccinations are reported to have been issued to millions of servicemembers, even at times when the drug was not fully approved; and

WHEREAS, in October 2004, a federal judge ordered the military to stop requiring anthrax vaccines for U.S. military personnel. In response, the Pentagon halted mandatory anthrax vaccinations "until further notice," but noted the court did not question the safety or effectiveness of the vaccine. Tennessee troops were issued anthrax vaccinations in 2004; now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that we strongly urge the United States Congress to require the Department of

Veterans Affairs to add COVID-19 treatments, conducted under Emergency Use Authorization (EUA) and before FDA approval was granted, as pre-qualifying for care under the PACT Act.

BE IT FURTHER RESOLVED, that we also strongly urge Congress to require the Department of Veterans Affairs to add anthrax vaccinations as qualifying for care under the PACT Act.

BE IT FURTHER RESOLVED, that we also urge Congress to conduct a full investigation and provide a report of the timeline, including the accountable persons who made decisions, recommendations, and approvals of the decision to require servicemembers to accept the introduction of these chemicals, with their possible harmful or toxic side effects and outside of legal and lawful permission, into their bodies.

BE IT FURTHER RESOLVED, that a certified copy of this resolution be transmitted to the Speaker and the Clerk of the United States House of Representatives, the President and the Secretary of the United States Senate, and each member of the Tennessee Congressional delegation.